

Complaint Report (CCRB)

CCRB Case No :	201911054	C/V Report Date :	Mon, 12/16/2019 05:19 PM
Complaint Type :	CCRB	Investigator :	William Moss
Complaint Made At :	IAB	Ref. No	19-45105
Received Date (CCRB) :	Thu, 12/26/2019 04:13 PM	Mode :	Phone
Incident Date(s) :	Saturday, 12/14/2019 9:00 AM		
Place of Occurrence:	[REDACTED]	Precinct:	44
Location :	Apartment/house	Boro:	Bronx
Reason for Initial Contact :	Aided case		
Charges:	No arrest made or summons issued		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Bruise	Bruised right eye	
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Swelling	Swollen right eye	
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Other Injury	Small cut on base of nose near right eye	

Name:	[REDACTED]	Type:	Comp/Witness
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Reporting Non-Witness
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	

Gender:

Person Assisting:

Ethnicity:

Date of Birth:

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POF	Krystal Madrid	Subject Officer	950997	Hispanic	138	Threat of force (verbal or physical) - (A) Exonerated
POF	Krystal Madrid	Subject Officer	950997	Hispanic	138	Word - (D) Exonerated
POF	Krystal Madrid	Subject Officer	950997	Hispanic	138	Physical force - (Unspecified) - (F) Exonerated
POF	Erica Fermin	Subject Officer	962402	Hispanic	044	Physical force - (punched/kicked/kneed) - (F) Unsubstantiated
POF	Erica Fermin	Subject Officer	962402	Hispanic	044	Search of Premises - (A) Substantiated (Command Discipline B)
POF	Erica Fermin	Subject Officer	962402	Hispanic	044	Chokehold - (F) Substantiated (Charges)
POF	Erica Fermin	Subject Officer	962402	Hispanic	044	False official statement - (U) Substantiated (Charges)
POF	Yajaira Garcia	Witness Officer	962746	Hispanic	044	
POF	Kimberly Torres	Witness Officer	965573	Hispanic	044	
SGT	Harry Delacruz	Witness Officer	941272	Hispanic	044	
POM	Kenneth Delgado	Witness Officer	950297	Hispanic	044	
POM	Gary Reyes	Witness Officer	951129	Hispanic	044	
POM	Michael Courtney	Witness Officer	962329	White	044	
POM	Minh Tran	Witness Officer	961392	Asian	044	

Initial Complaint Narrative

On December 16, 2019, § 87(2)(b) filed this NYS Child Abuse referral with the NYPD's Special Victims Unit. SVU then forwarded the complaint to IAB on December 16, 2019. IAB forward the complaint to the CCRB on December 26, 2019. On December 14, 2019, § 87(2)(b) and her mother, § 87(2)(b) had a verbal argument in their apartment at § 87(2)(b), in the Bronx. § 87(2)(b)'s grandmother, § 87(2)(b) called 911 and reported an emotionally disturbed person. Five female officers from the 44th Precinct responded to the apartment. The officers entered and PO1 grabbed § 87(2)(b) without any notice. § 87(2)(b) grabbed PO1 back. PO1 pushed § 87(2)(b) onto a chair and elbowed her four times in the face to break away. § 87(2)(b) suffered sustained swelling and bruising to her right eye. EMS transported § 87(2)(b) to § 87(2)(b). A C/T scan revealed negative results for fractures. On § 87(2)(b), § 87(2)(b) brought § 87(2)(b) to their pediatrician's Emergency Department for evaluation and a second opinion regarding § 87(2)(b)'s injuries because they had not improved. § 87(2)(b) said the incident occurred so quickly that she got none of the officers' information. PO1: female officer, 44th Precinct

Witness

Name of Witness:

Address:

Contacts:	[REDACTED]	[REDACTED]
	[REDACTED]	[REDACTED]
	[REDACTED]	
Gender :	[REDACTED]	Ethnicity: [REDACTED]
Date of Birth :	[REDACTED]	
Name of Witness:	[REDACTED]	
Address:	[REDACTED]	
Contacts:	[REDACTED]	[REDACTED]
	[REDACTED]	[REDACTED]
	[REDACTED]	
Gender :	[REDACTED]	Ethnicity: [REDACTED]
Date of Birth :	[REDACTED]	